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Editorial - Some legislation has been good, but mostly bad

September 7, 2023 | Redlands Daily Facts (CA)
Section: Opinion | 532 Words
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The California legislature is racing to pass legislation before the Sept. 14 deadline. Here's our take on several bills.

No on AB 28

Assembly Bill 28 is by Assemblymember Jesse Gabriel, D-Encino. It would slap an 11% excise tax on firearms and ammunition, raising an estimated $159 million a year. That would be on top of an existing federal excise tax of 11%. Among other things, the money would pay for enhanced school security and compensation to victims of gun crimes.

Opponents note the tax will not affect weapons used by criminals, which come from the black market. And it disproportionally would hurt poor people needing weapons for self-defense. It also would drive many purchases to neighboring states. Last year the U.S. Supreme Court affirmed the Second Amendment right to "keep and bear arms" is a personal right.

Paying for enhanced school security is a laudable idea. To pay for it, the Legislature could reject public sector union demands for big, unjustified pay raises. Vote No.

Yes on SB 4, 423

Senate Bill 4 and Senate Bill 423 are by Sen. Scott Wiener, D-San Francisco. The first bill would advance low-income construction on college or religious institutions' property. The second would, in its language, advance "streamlined review for development" to help "lower income households." And such developments "shall be exempt from the requirements of the California Environmental Quality Act."

This would be a start in the long-needed complete reform of CEQA. We need more housing. Vote Yes on both.

No on ACA 1, ACA 13

Assembly Constitutional Amendment 1 and Assembly Constitutional Amendment 13 are, as their names suggest, constitutional amendments which will require voter approval if approved by the Legislature.

This gives lawmakers who vote for these amendments cover to argue they aren't necessarily supportive of what the amendments would do, but just want to put the matter for voters to decide.

Don't fall for that. The only reason these two ACAs are being put up to a vote is because Democratic leaders want them to pass.

ACA 1, for example, seeks to make it easier for bonds and special taxes to be raised. This is a direct attack on taxpayers across California.

ACA 1 was approved on Wednesday by the Assembly with the help of supposed Democratic "moderates" like Asm. Blanca Rubio, Sharon Quirk-Silva, Sabrina Cervantes.

ACA 13 is a particularly cynical amendment aimed at a qualified ballot measure set to go before voters next November. That measure, backed by business and taxpayer groups, would, among other things, "raise the voting

requirements for local tax increases and require voter approval of new state taxes," as CalMatters' Dan Walters explained.

ACA 13, which could go on the ballot in March, would "require any ballot measures seeking to increase voting requirements beyond a simple majority to meet the same supermajority level themselves." In other words, it's a straightforward effort to undermine a measure which seeks to protect taxpayers.

ACA 13 was approved by the Assembly on Wednesday, also with the help with the "moderate" Democrats who advanced ACA 1, as well as Orange County Asm. Cottie Petrie-Norris and Inland Empire Asm. James Ramos.

Alas, the "moderates" are never moderate when it matters.

Here's to hoping ACA 1 and 13 are rejected by the state Senate.

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- **Citation (apa Style)**
  Editorial Some legislation has been good, but mostly bad. (2023, September 7).*Redlands Daily Facts (CA)*, p. 11. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/193E679B7A46DA90.